NYC Public Schools Guidance on AI and Screen Time: Data and Student Privacy Passages

Excerpted verbatim from *Guidance on Artificial Intelligence and Screen Time (New York City Public Schools, 2026–27 school year), web page*. The source has no page numbers; locations are given by section. This is a web page with no page numbers, so each section cites the web page section. Ellipses (…) mark omitted text.

Grades 9–12: Limited AI Pilots (excerpt)

Source: web page, section 'Limited AI Pilots'

All high school students will be required to complete two 45-minute AI literacy modules which will include lessons on how AI works, data privacy and bias, and appropriate uses of AI in school.

Tool selection was based on criteria such as:

- Compliance approval with the NYCPS Enterprise Request Management Application (ERMA) data privacy and security review process.

How Teachers and School Staff Members May Use AI (excerpt)

Source: web page, section 'How Teachers and School Staff Members May Use AI'

Teachers and other school staff members may continue using AI for instructional planning and operational tasks, subject to existing requirements, including the NYCPS Enterprise Request Management Application (ERMA) data privacy and security approval process, and NYCPS procurement rules. Additionally, AI may not be used for grading, behavior monitoring, or for placement, promotion, graduation, and other decisions about students.

How Software is Evaluated Before Reaching Your Child's School

Source: web page, section 'How Software is Evaluated Before Reaching Your Child's School'

Before any tool can be used with your child, it must be reviewed and approved. We call that review ERMA—the Enterprise Request Management Application. It's how we check that tools keep your child's data safe and protected.

The review is also how we keep the promises New York State law makes to you. Under New York State Education Law 2-d and its regulations, every vendor we work with must sign an agreement about how it will handle student information and provide NYCPS an explanation of what data it collects and how it protects it and meet recognized security standards. ERMA is where we confirm all of that.

The ERMA process currently reviews tools for data privacy and security. NYCPS is committed to building expanded evaluation capacity, including areas not covered by ERMA such as algorithmic bias, equity impact, and instructional effectiveness.

Teachers and staff members can confirm whether a tool has been approved by visiting the NYCPS Ed Tech Portal and logging in with their NYCPS credentials.

Families can also learn more about student privacy.

Our Commitments to You: Protect Student Data and Be Clear About AI

Source: web page, section 'Our Commitments to You'

Student data belongs to students and families and is protected by law.

Additional Resources for Families: Student and Family Rights, Student Privacy

Source: web page, section 'Additional Resources for Families'

Know Your Rights: Student Privacy

- NYCPS Parents' Bill of Rights for Data Privacy and Security
- Protection of Pupil Rights Amendment (PPRA)
- Family Educational Rights and Privacy Act (FERPA)
- Individuals with Disabilities Education Act (IDEA)

Student Privacy

- Family Educational Rights and Privacy Act (FERPA): Gives families the right to access and protect their child's education records
- Children's Online Privacy Protection Rule (COPPA): Protects personal information collected from children under 13 online
- New York State Education Law Section 2-d: Protects student data and limits how it can be shared or used
- Chancellor's Regulation A-820: Data privacy and security
- Children's Internet Protection Act (CIPA): Requires schools to protect students from harmful online content